

1.

CASE #	CASE NAME	HEARING NAME
CVME2500849	JORDAN VS LOVE	MOTION FOR SUMMARY ADJUDICATION ON 3 RD AMENDED COMPLAINT

Tentative Ruling: Deny Plaintiff's requests for judicial notice in full. Grant Defendants' requests for judicial notice of Exhibits A and B under Evid. Code § 452(c). Overrule Defendants' Evidentiary Objection Nos. 1-5. Deny Plaintiff's motion for summary adjudication in full.

A motion for summary adjudication must specifically identify each cause of action, affirmative defense, claim for damages, or issue of duty in the notice of motion, and repeat them verbatim in the separate statement. (C.R.C., Rule 3.1350(b).) Plaintiff's Notice and Separate Statement list 23 "issues" for summary adjudication. But summary adjudication is proper only for "issues of duty." (C.C.P. § 437c(f)(1).) Most of Plaintiff's "issues" are factual disputes, not duty issues (e.g., "What are the qualifications of Expert Witness Donna Caudillo?"; "Who was the real buyer of the Volkmann property?"). These are not proper subjects for summary adjudication.

Only Issue 18 ("Did Hannah Love breach her trust obligations?") and Issue 22 ("Did Hannah Love ignore Michael Jordan's written demands to deed the property?") arguably raise duty issues.

Although the P&As seek summary adjudication of six causes of action, neither the Notice nor Separate Statement identifies any cause of action. The Notice only generally claims that the causes of action prevail as a matter of law. The Separate Statement omits any reference to a cause of action. This fails to comply with Rule 3.1350's requirements for summary adjudication.

The court may not summarily adjudicate claims not specifically requested in the notice of motion. (*Homestead Sav. v. Sup. Ct.* (1986) 179 Cal.App.3d 494, 498.) Failure to provide a proper separate statement is grounds to deny the motion. (C.C.P. § 437c(b)(1); see also *Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Accordingly, the Court denies summary adjudication of Issues 1-17, 19-21, and 23 because they are not "issues of duty," and denies summary adjudication of the first through sixth causes of action because they are not specifically identified as required by Rule 3.1350(b).

Issue 18: Plaintiff alleges Hannah Jordan breached her trust obligations to hold the Deed for Michael and Karen Jordan. Plaintiff's Separate Statement cites expert Donna Caudillo, who reviewed her own report (Deposition Exhibit B) and opined that Hannah was a "straw buyer" expected to transfer the Property to her parents, but did not do so. (Separate Statement, ¶ 18.)

Defendants dispute the facts but cite only objections, not evidence. This does not comply with California Rules of Court, Rule 3.1350(f)(2), which requires the opposing party to state the nature of the dispute and cite evidence supporting their position. (*See also Hodjat v. State Farm* (2012) 211 Cal.App.4th 1, 8.)

However, the Separate Statement does not provide sufficient material facts to show Hannah breached a contractual duty to hold the Property in trust for Plaintiff and Decedent. For summary judgment or adjudication, *all* material facts must be included in the separate statement; if not, they do not exist for the motion. (*North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 30-31.)

Additionally, the separate statement must link each material fact to the specific claim or issue. If it omits necessary facts, the judge *need not review* supporting declarations or other evidence. (C.R.C., Rule 3.1350(b); Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (The Rutter Group 2026) Ch. 10-C, § 10:98; *Rio Linda Unified School Dist. v. Sup. Ct.* (1997) 52 Cal.App.4th 732, 740.)

Here, the Separate Statement for Issue 18 does not provide material facts showing that Hannah agreed to be a straw buyer, to return the Property on demand, or that any demand was made. It merely alleges a vague “particular transaction” and an unspecified deed of trust that was never transferred. There are no details about the transaction, the deed of trust, or any agreement terms sufficient to create a contractual duty for Hannah.

Issue 22: Plaintiff’s Separate Statement for Issue 22 asserts only: “Did Hannah Love ignore Micheal Jordan’s written demands to deed the property to him upon discovery of her breaches? YES.” The sole supporting evidence cited is Exhibit 8 of the TAC.

The Separate Statement does not set forth the material facts necessary to establish that Hannah had a duty to deed the Property to Plaintiff upon written demand. It contains no facts showing that Hannah agreed to return the Property upon demand, or that Plaintiff actually made such a demand. In the absence of these stated facts, none exist. (*North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 30-31.)

2.

CASE #	CASE NAME	HEARING NAME
CVME2507496	TAYLOR VS 25859 JEFFERSON AVENUE, LLC	MOTION TO APPOINT RECEIVER ON CROSS-COMPLAINT; MOTION TO COMPEL (AND JOINDER) COMPLIANCE WITH OPERATING AGREEMENT

Tentative Ruling:

Receiver: Sustain the objections to the Mazzarella Decl. ¶¶ 3-7, 9-10, the Taylor Decl. ¶¶ 11-12, and the De Goutiere Decl. ¶¶ 10-11. Overrule the objections to the Taylor Decl. ¶¶ 4-8 and the De Goutiere Decl. ¶¶ 7 and 9. Deny the motion.

A receivership pending suit is a provisional equitable remedy intended to maintain the status quo during litigation. (*Southern Cal. Sunbelt Developers, Inc. v. Banyan Ltd. Partnership* (2017) 8 Cal.App.5th 910, 925.) To obtain a receiver, a party must prove by a preponderance of the evidence that it has a joint interest in the property, the property is in danger of being lost, removed, or materially injured, and the party has a right to possession. (*Alhambra Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.) The moving party must present admissible evidence of ongoing harm. (*Id.*)

The appointment of a receiver is a drastic remedy, reserved for exceptional cases. It should be used only when absolutely essential and no other remedy will suffice. (*Medipro Medical Staffing, LLC v. Certified Nursing Registry, Inc.* (2021) 60 Cal.App.5th 622, 628; *City & County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744; *Cohen v. Herbert* (1960) 186 Cal.App.2d 488, 495 [“The remedy is an extraordinary and harsh one, to be allowed cautiously and only where less onerous remedies would be inadequate or unavailable.”].) If a less severe remedy can adequately protect the parties’ rights, the court should not take property from its